

Relevant Grant Deed Clauses

10. Audit and access

10.1 Access to Recipient's premises and record

- (a) During the Term and for a period of ten years following the Expiry Date, the Recipient will give, and will procure its Representatives to give, upon reasonable notice and during normal business hours, full and free access and reasonable assistance to the Department, its Representatives and nominated auditors to:
 - (i) speak to the persons associated with the Activity;
 - (ii) examine, inspect and copy any material, including any books and records, in the possession of the Recipient, which is relevant to this deed, including providing all necessary facilities for that purpose;
 - (iii) examine and inspect the performance of the Activity; and
 - (iv) locate and make copies of any of the Recipient's accounts, records, documents and other material that relate directly or indirectly to the receipt, expenditure or payment of the Grant or the conduct of the Activity.
- (b) The Department's right of access under clause 10.1(a) may be exercised for any reasonable purpose relating to this deed, including for financial or compliance audits, or reviews of the Recipient's performance of this deed.
- (c) When accessing premises and/or records in accordance with clause 10.1(a), the Department will use its best endeavours to minimise interference to the Recipient's employees and the conduct of the Activity.
- (d) For the purposes of this clause 10, the Department's nominated auditor may be a person with suitable qualifications as determined by the Department.

10.2 Other information to be provided

During the Term and for a period of ten years following the Expiry Date, the Recipient must promptly provide any information requested in writing by the Department, its Representatives or its nominated auditors, concerning any aspect of the Activity or the Grant or any term of this deed.

11. Subcontracting

- (a) The Recipient must not, without the Department's prior written consent, subcontract the whole, or any part, of the Recipient's obligations under this deed. The Department will not unreasonably withhold its consent.
- (b) The Department's consent, when given under paragraph (a), to any subcontract will not relieve the Recipient from any liability or obligation under this deed.
- (c) The Recipient will ensure the suitability of each subcontractor engaged, in relation to the Activity and that any part of the Activity carried out by the subcontractor meets the requirements of this deed.
- (d) The Recipient must ensure that each approved subcontract:
 - (i) each subcontract entered into is consistent with this deed, and that the terms and conditions of the subcontract, at a minimum, includes clauses 10, 11, 12, 15, 16 and 17 of this Deed (Nominated Clauses); and
 - (ii) requires each subcontractor to comply with the Nominated Clauses as if it were the Recipient.
- (e) The Recipient is and remains liable under this deed for the acts or omissions of any subcontractor engaged at any time during the Term in relation to the Activity.

12. Intellectual Property Rights

- (a) Nothing in this deed affects ownership of Background IP.
- (b) Each party warrants that to the best of its knowledge and belief at the Commencement Date, it owns its Background IP, or otherwise has the right to use its Background IP in accordance with this deed.
- (c) All rights in and title to the Activity Material and Reports will vest, upon creation, in the Recipient.
- (d) The Recipient grants to the Department a non-exclusive, worldwide, perpetual, irrevocable, royalty-free licence (including a right to sub-license) to use, communicate, reproduce, publish, adapt and modify:
 - (i) the Activity Material;
 - (ii) the Recipient's Background IP to the extent necessary to exercise the rights granted under the licence to the Activity Material; and
 - (iii) the Reports,for the Department's non-commercial purposes.
- (e) The Department grants to the Recipient a non-exclusive, non-transferable, royalty-free licence to use the Department's Background IP solely for the purposes of carrying out the Activity and to the extent the Background IP is incorporated in and necessary to exercise the Recipient's rights in the Activity Material.
- (f) The Recipient will do all things necessary (including obtaining consents) to ensure:
 - (i) the vesting of the Activity Material and Reports in accordance with clause 12(c); and
 - (ii) the licensing of the Activity Material and Reports in accordance with clause 12(d).

15. Conflict of interest

- (a) The Recipient warrants that, to the best of its knowledge and belief, after making diligent inquiries as at the date of signing this deed, no Conflict of Interest exists.
- (b) The Recipient must not have and must take all reasonable measures to ensure its Representatives do not have, a Conflict of Interest.
- (c) If, during the Term, a Conflict of Interest arises, or appears likely to arise, the Recipient will notify the Department immediately in writing and take such steps to resolve or otherwise deal with the conflict to the Department's satisfaction.
- (d) If the Department is given notice of a Conflict of Interest pursuant to clause 15(c) or if the Department otherwise identifies that a Conflict of Interest exists, the Department may:
 - (i) direct the Recipient as to how to manage the Conflict of Interest and the Recipient must comply with any reasonable direction so given by the Department; or
 - (ii) terminate this deed in accordance with clause 22.4.
- (e) The Recipient must keep a record of each Conflict of Interest that arises and how it was managed.

16. Confidentiality

16.1 Confidential Information

Subject to clause 16.2, a party must not:

- (a) disclose the other party's Confidential Information to a third party; or
- (b) use the other party's Confidential Information other than for the purpose of performing this deed.

16.2 Exceptions

A party may disclose the other party's Confidential Information:

- (a) with the other party's prior written consent (including any consent specified in this deed);
- (b) to a professional adviser, financial adviser, banker, financier or auditor if that person is obliged to keep the information disclosed confidential;
- (c) to any of its Representatives who are bound to keep the information confidential and to whom it is necessary to disclose the information;
- (d) to comply with the law, or a requirement of a regulatory body (including any relevant stock exchange);
- (e) to the extent necessary to enforce its rights or defend a claim or action under this deed; and
- (f) where that party is the Department:
 - (i) to the responsible Minister administering the Department and their personal and departmental advisers;
 - (ii) when required by law and following reasonable prior notification to the Recipient, in response to a request by the Parliament or a Committee of the Parliament of the State of Queensland; or
 - (iii) where required by law and following reasonable prior notification to the Recipient, to any Commonwealth department, Queensland Government department, agency, authority or Minister.

16.3 Breach of confidentiality

- (a) If a party becomes aware of a suspected or actual breach of this clause 16, the party will immediately notify the other party and take reasonable steps required to prevent or stop the suspected or actual breach.
- (b) The parties acknowledge and accept that damages will be an inadequate remedy for a breach of this clause 16.

16.4 Return of Confidential Information

The Disclosee will return or take reasonable steps to destroy (at the Disclosee's discretion) material containing Confidential Information when it is no longer required by the Receiver, or when otherwise directed by the Discloser, subject to any record-keeping requirements at law.

16.5 Recipient's undertaking

- (a) The Recipient must make every reasonable effort to ensure that its Representatives are aware of and comply with the obligations of confidentiality in this clause 16.
- (b) The Department may, at any time, require the Recipient to arrange for its Representatives engaged in the performance of the Activity, to give written undertakings in a form reasonably required by the Department relating to the non-disclosure of Confidential Information under this clause 16.

17. Privacy and Personal Information

Management of Personal Information

- (a) This clause 34 applies where this deed amounts to a "service arrangement" under the *Information Privacy Act 2009* (Qld).
- (b) If the Recipient collects or has access to Personal Information in order to undertake the Activity, the Recipient must:
 - (i) comply with Chapter 2, Parts 1 and 2 and section 41 of the *Information Privacy Act 2009* (Qld) in relation to the discharge of its obligations under this deed (including its obligations regarding Reports), as if the Recipient was the Department;
 - (ii) ensure specific compliance with QPP 3 (collection of solicited Personal Information) and QPP 6 (use or disclosure of Personal Information) with regard to the Recipient's collection, use and disclosure of Sensitive Information
 - (iii) not use Personal Information other than for the purposes of undertaking the Activity; unless required or authorised by law;
 - (iv) not disclose Personal Information without the Department's prior written consent, unless required or authorised by law;
 - (v) not disclose Personal Information outside of Australia without the consent of the Department, and where consent is given, ensure that any such disclosure complies with section 33 of the *Information Privacy Act 2009* (Qld) (disclosure of Personal Information outside Australia);
 - (vi) ensure that access to Personal Information is restricted to those Representatives who have a genuine need to know the Personal Information in order to perform their duties;
 - (vii) ensure the Representatives do not access, use or disclose Personal Information other than in the performance of their duties;
 - (viii) ensure that its Representatives who have access to Personal Information comply with the same obligations as those imposed on the Recipient under this clause, including an obligation to comply with the QPPs;
 - (ix) fully co-operate with the Department to enable the Department to respond to applications for access to, or amendment of a document containing an individual's Personal Information and to Information Privacy Complaints relating to the Department's collection, use or disclosure of Personal Information;
 - (x) handle privacy complaints (including Information Privacy Complaints) relating to the Supplier's handling of Personal Information in accordance with the Supplier's complaints management framework (refer to clause 3);
 - (xi) provide the Department with details of all privacy complaints and outcomes within five (5) Business Days of any request by the Department; and
 - (xii) comply with such other privacy and security measures as the Department reasonably advises the Supplier in writing, from time to time.
- (c) The Recipient must immediately notify the Department on becoming aware of any breach of clause 17(b).
- (d) On the Department's request, the Recipient must obtain from its Representatives

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engaged for the purposes of this deed, an executed deed of privacy and confidentiality in a form acceptable to the Department and provide copies of the fully signed deeds of privacy and confidentiality to the Department no later than five (5) Business Days after a request from the Department.

- (e) If the Recipient collects, records or otherwise deals with Personal Information, the Recipient must make available a copy of the Recipient's Privacy Notice to the person giving the Recipient the Personal Information.
- (f) The Recipient's Privacy Notice must:
 - (i) be of a standard reasonably acceptable to the Department;
 - (ii) meet the requirements of and comply with QPP 5 (notification of the collection of Personal Information); and
 - (iii) state that information the Recipient collects may be provided to the Department to ensure that the Recipient in order to undertake the Activity.
- (g) For the avoidance of doubt, the Recipient must continue to comply with Chapter 2, Parts 1 and 2 and section 41 of the *Information Privacy Act 2009* (Qld) after its obligations under the Agreement otherwise end.
- (h) The Recipient must make every reasonable effort to notify the Department immediately upon becoming aware of any breach of this clause 7.
- (i) The Recipient must notify the Department immediately in the event that the Recipient becomes aware that disclosure of Personal Information, in relation to any child subject to the *Child Protection Act 1999* (Qld) or the *Youth Justice Act 1992* (Qld), is made or may be required by law.
- (j) The Recipient must immediately notify the Department on becoming aware of any breach of clause 17(b).
- (k) On request by the Department, the Recipient must obtain from its Representatives engaged for the purposes of this deed, an executed deed of privacy in a form acceptable to the Department. Copies of the fully signed deeds of privacy must be provided to the Department no later than 5 Business Days after the Department's request.
- (l) For avoidance of doubt:
 - (i) paragraph 17(b) does not affect the requirements in this Agreement for the Recipient to obtain the Department's consent to subcontracting; and
 - (ii) any subcontracting does not relieve the Recipient from any of its obligations under this clause 17.
- (m) If the Department collects Personal Information in its performance of this Agreement, then the Department will treat such Personal Information in accordance with the *Information Privacy Act 2009* (Qld).
- (n) This clause 17 survives expiry or termination of this Deed.

Data Breaches

- (o) The Recipient acknowledges that under the *Information Privacy Act 2009*, the Department has obligations to notify the Office of the Information Commissioner and affected individuals of a suspected Eligible Data Breach and the Recipient agrees to:
 - (i) within one (1) Business Day of becoming aware, notify the Department of any actual or suspected Eligible Data Breach involving Personal Information or Sensitive Information dealt with under this Agreement;
 - (ii) as soon as practicable, provide the Department with full particulars of the actual or suspected Eligible Data Breach; and
 - (iii) comply with any privacy or data breach containment, mitigation or security measure directed by the Department in relation to the actual or suspected Eligible Data Breach, including notifying any individuals affected by the actual or suspected Eligible Data Breach.
- (i) The Recipient must notify the Department within two (2) Business Days of becoming aware of any information privacy breach which is not an Eligible Data Breach and involves Personal Information dealt with under this Agreement.
- (j) For the avoidance of doubt:
 - (i) The Recipient is deemed to have become aware of a breach of this clause 17 if any of its

Representatives become aware of the breach; and

- (b) the Recipient is liable for any unauthorised access to or unauthorised disclosure of Personal Information where it is caused or contributed to by any of its Representatives.